

**IN THE HONORABLE SUPREME COURT OF THE REPUBLIC OF LIBERIA,
SITTING IN ITS MARCH TERM, A.D. 2016**

Present: His Honor: Francis S. Korkpor, Sr. Chief Justice
 Present: His Honor: Kabineh M. Ja'neh..... Associate Justice
 Present: Her Honor: Jamesetta H. Wolokolie..... Associate Justice
 Present: His Honor: Philip A. Z. Banks, III Associate Justice
Present: Her Honor: Sie-A-Nyene G. Yuoh..... Associate Justice

In Re: Grievance and Ethics Committee Investigation Report on Complaint by Messrs.
 Amos Suomie, Sylvanus Collins, Aloysius Kieh, Patrick Gargar, Dester Yeabahn and
 Abraham Kermue against Attorney-At-Law Morris A. Kaba.

Heard: September 5, 2016

Decided: September 23, A.D. 2016

Counsellors N. Oswald Tweh of Pierre Tweh and Associates, Tiawan S. Gongloe of Gongloe and Associates, and Katheleen Pyne Makor of Kemp and Associates Law Chambers, appeared as *amici curiae*. Counsellor Amara M. Sheriff appeared for the respondent.

MR. JUSTICE JA'NEH *delivered the Opinion of the Court.*

In a covering letter dated October 23, A.D. 2013, His Honour Francis S. Korkpor, Sr., Chief Justice of the Supreme Court of Liberia transmitted a communication of complaint addressed to him by six criminal defendants: Amos Suomie, Sylvanus Collins, Aloysius Kieh, Patrick Gargar, Dester Yeabahn and Abraham Kermue. According to the records certified to this Court, the complainants were tried at the Second Judicial Circuit Court for Grand Bassa County and convicted on multiple charges of "*Armed Robbery, Criminal Conspiracy & Criminal Facilitation*".

In the letter addressed to Counsellor George E. Henries, Chairman, Grievance and Ethics Committee, the Chief Justice stated:

"Dear Counselor Henries:

I forward you herewith a letter of complaint from Messrs. Amos Suomie, Sylvanus Collins, Aloysius Kieh et al of Upper Buchanan, Grand Bassa County, Liberia, against Attorney-At-Law, Morris A, Kaba, Second Judicial Circuit, Grand Bassa County, Liberia.

I request that your commission conduct an investigation into the matter, and following the investigation, submit its findings to me...."

In their letter of complaint to the Chief Justice, bearing the date, October 10, A.D. 2013, the six convicts narrated as follows:

"We hasten to refer you for and in behalf of ourselves, Defendants, of the below captioned case against the unfair attitude of Attorney Morris A. Kaba for your official and timely intervention.

Attorney Morris A. Kaba was regularly retained to represent the legal interest of the defendants in the case:

<i>Liberia Bank for Development & Investment, (LBDI)...</i>	<i>Plaintiff)</i>	<i><u>Crime</u></i>
<i>Versus</i>		<i>) Armed Robbery,</i>
<i>Amos Suomie, Sylvanus Collins, Aloysius Kieh, Patrick Gargar</i>	<i>)</i>	<i>Criminal Conspiracy</i>
		<i>)& Criminal Facilitation</i>
<i>Dester Yeebahn, and Abraham Kermue...</i>	<i>Defendants)</i>	

until all legal issues attending this case can be put to rest, but to our utmost surprise and dismay after rendition of the lower court's final judgment against the defendants to which final judgment of the lower court Attorney Kaba announced an appeal to the Honorable Supreme Court of Liberia and thereafter, filed a Bill of Exceptions on 19th day of April, 2013, in the office of the Clerk of Court, Second Judicial Circuit, Grand Bassa County; Attorney Kaba has neglected and failed to meet his legal obligation of the lawyer's duty to his client, as laid down in the rules governing the lawyer's legal services to his client in terms of retainer by his client. Right now, the fate of the case being transmitted to the Honorable Supreme Court is in abeyance as no Notice of Completion of Appeal has been served to keep defendants in the save path of the proceedings. These conditions as created by Attorney Kaba leave us to wonder at sea as to what to do. If Attorney Kaba felt he needed the aid of a Counsellor to do the follow up of the case and represent the legal interest of the defendants before the Honorable Supreme Court, we should have been informed by him in due time; but [up] to present, he has said nothing toward this end.

We therefore fear that if this unfair attitude of Attorney Kaba is not brought to your attention for official intervention, defendants' interest before the court will be jeopardized.

Hence, we pray your indulgence Sir. With respectful regards we remain..."

Upon being seized of the matter, the Grievance and Ethics Committee composed of both lawyers and prominent citizens of Liberia, summoned Attorney Morris Kaba and forwarded to him a copy of the complaint filed against him. Attorney Kaba was requested to file his returns to said complaint. Where a complaint has been put forth against a party, the procedure consistently adhered

to by the Grievance and Ethics Committee is to hear from the party complainant and the party complained of. This procedure is in perfect harmony with the venerated principle of due process of law held sacred by every judicial body in this jurisdiction.

In obedience to the summons, Attorney Kaba, on March 4, A.D. 2015, appeared before the Grievance and Ethics Committee, and filed his formal Returns, which bore the date, February 23, A.D.2015.

For the benefit of this Opinion, we have quoted in substance Attorney Morris Kaba's returns as follows:

"Respondent, Atty. Morris A. Kaba in the Complaint of Amos Suomie, Sylvanus Collins, Aloysius Kieh, Patrick Gargar, Dester Yeah Bahn and Abraham Karmue versus Atty. Morris A. Kaba, responding to the said Complaint, submits the followings to wit:

1. *That, Respondent admits that he did represent the complainants along with other lawyers in an Armed Robbery case before the Second Judicial Circuit Court of Grand Bassa County. The other lawyers include Arthur Johnson, Bobby Livingstone and Patrick K. Williams.*
2. *Respondent submits further that during the trial, which lasted for about a month, with the exception of Atty. Arthur Johnson, the rest of the lawyers including Respondents regularly attended the trial to the point of a verdict [being] brought by the jury which operated in favor of the Prosecution. Respondent avers further that the Defense Team gave notice to take advantage of the statute and when final judgment was rendered, Respondent and the other lawyers announced an appeal. That, following the announcement [of appeal], Respondent personally filed a Bill of Exceptions, lonely signed by him as the other lawyers were out of the bailiwick of the Second Judicial Circuit and as such, they could not sign the Bill of Exceptions.*
3. *Respondent further submits, that immediately after the approval of the Bill of Exceptions by the presiding judge, His Honor Williams Sando, Respondent departed the City of Buchanan for Rivercess County where he had gone to attend an urgent family problem. Sirs, it is essential to further mention that before departure from the City of Buchanan, Respondent*

contacted one of the Lawyers, in person of Atty. Bobby Livingstone in the presence of an uncle of one of the complainants, Aloysius Kieh, simply known to Respondent as Patrick to file the Notice of Completion of Appeal so as to finalize the announcement for an appeal.

4. *That, Respondent submits and says that under his oath as a lawyer he has no reason to lie to this Honorable Committee but that the picture of what transpired exactly is what he had presented to the Honorable Body thru this Respondent's Return. Further, Respondent ably represented the Complainants before the Second Judicial Circuit Court except for the failure of the lawyers including himself to file a Notice of Completion of Appeal for which respondent has been singled out.*

Wherefore, it is the prayer of respondent that the complaint filed against him be set aside, [and] with the help of this Honorable Body that we find a solution to this grave problem subject of Complainants' Complaint..."

The records further reveal that the Grievance and Ethics Committee conducted hearing into the complaint and submitted its Report to this Court through the Office of the Chief Justice. We deem it appropriate to reproduce in substance of said Investigative Report, dated March 18, 2015. It is as follows:

"This matter was called for hearing on March 18, 2015, before the Committee. The both parties appeared and testified in the case. The Complainants, thru their representatives, as they were then and still are incarcerated, reaffirmed the allegations made in their Written Complaint. Atty. Kaba subsequently took the stand and did not deny the allegations made by the Complainants but sought to justify and defend himself, with the position that he had diligently defended the Defendants/Complainants herein, throughout the trial in the Second Judicial Circuit, Grand Bassa County, until Final Judgment was rendered. In his testimony before the Committee on March 18, 2015, Atty. Kaba stated that at that stage of the Trial, he was handicapped to go further because the matter had to go to the Supreme Court of Liberia and he was not a Counselor-At-Law.

Not being a Counselor, he could not appear before the Supreme Court and therefore suggested to the Complainants to hire a suitable counsel to represent their interest in the said Court. Atty. Kaba testified that it was at this point the Complainants/Defendants notified him that Cllr. Nyanti Tuan had already been contacted and [he has] agreed to represent their interest in the Supreme Court of Liberia. He stated further that he got ill at the end of the trial process and had to travel to Rivercess County to seek medical attention. In that period, and [in] the presence of a representative of the Complainants, Atty. Kaba stated that he then presented the approved Bill of Exceptions to Atty. Bobby Livingstone to work with their representatives and Counsellor Tuan to complete the Appeal process.

However, in his closing [statement], Atty. Kaba admitted that it was only upon his return from Rivercess County, that he was able to deliver the case file to Cllr. Tuan, which was a period beyond the sixty (60) days allowed by law to complete the Appeal, following the rendition of Final Judgment. Like in his Formal Returns he therefore prayed that the Complaint filed against him be set aside and the Committee use its relationship with the Supreme Court to find a solution to the grave problem confronting the Appeal process of the Complainants.

The Committee, in its fact-finding objective, asked questions to all of the witnesses. Atty. Kaba did not request for the presence of the other lawyers in the matter, to confirm his allegation that he informed them that he was sick and had to go to Rivercess County to seek medical attention and that they will be responsible to work along with Cllr. Tuan to complete the Appeal process. The Committee contacted Cllr. Tuan and he responded to the effect that he was indeed contacted to represent the Complainants on appeal but he had no records and was only placed in contact with Atty. Kaba outside of the statutory time for the completion of the Appeal in the Criminal Trial. The testimonies rested and the Committee went into deliberation.

The Committee concluded that there appeared to be no controversies in the facts presented. The only issue derived is whether or not the Respondent failed his duty as a lawyer to his Clients to have ensured that their Constitutional right of appeal was granted unto them.

No other lawyer was complained against by the Complainants and was not brought under the Committee's Jurisdiction for any investigation. The Committee therefore concluded that Atty. Kaba was derelict in superintending the conclusion of the trial case, even though not a Counsellor-At-Law but was under a legal duty to have ensured that the defendants were adequately represented, the Appeal process completed and they be given an opportunity to be heard in the Supreme Court.

Rule 6 of the Code of Conduct for lawyers in this jurisdiction states, inter alia, that a lawyer having undertaken the defense of a person accused of crime...shall exert his very best professional effort....

Further, Rule 21 adds "...It is also his duty to the public and to his profession to avoid tardiness in the performance of his professional duty".

CONCLUSION:

It is therefore the opinion of the Committee that Atty. Kaba is in breach of these two (2) Rules. Perhaps his representation that he was ill and had to go to Rivercess County to seek medical attention is plausible. Hence, this may have been a justifiable reason for his tardiness or dereliction in superintending the Appeal by making contact with the designated Counsellor-At-Law named by the Complainants/Defendants, which would have allowed an extension of the time to present the file to the lawyer for him to proceed with the completion of the Appeal process in default or apply for a Writ of Error. But the Rule in this jurisdiction is that, where a party litigant, witness or lawyer in a trial or trial proceeding represents that he was ill, the responsibility is upon him to provide evidence of his illness in the nature of a physical proof.

The Respondent has not indicated what was the nature of his illness or the method of treatment that was required. The burden of proof rested upon the Respondent and he failed to provide evidence thereof.

The Respondent is therefore adjudged to be in violation of Rules 6 and 21 of the Rules Governing the Moral and Ethical Conduct in this jurisdiction and should therefore be suspended for 'Twelve (12) months from the practice of law in this jurisdiction. The Committee is hopeful that because the Constitutional right of appeal of the Complainants was violated and abused, they be granted an extension to the Rule and the designated counsel, Cllr. Nyanti Tuan, be allowed nunc protunc to proceed by Error without the Statutory time, on the ground that due to the unceremonious departure of Atty. Kaba from their presence to an area possibly where normal communication link was not readily available to have the Appeal process [done] on their behalf..."

Upon receipt of the Grievance and Ethics Committee's Report, this Court convened a hearing thereon. Time and again this Court has conducted hearings on report, findings and recommendations submitted to this Court by both the Grievance and Ethics Committee and the Judicial Inquiry Commission. These two bodies have been established by the Supreme Court of Liberia for the purpose of conducting investigations into complaints brought against lawyers, judges and judicial employees. In keeping with this established practice of according due process of law, the parties to the case were duly cited to attend to the hearing. In furtherance of the principle of due process, the Supreme Court also appointed Counsellors N. Oswald Tweh, Tiawan S. Gongloe and Kathleen T. P. Makor to serve as *amici curiae*.

This Court reiterates that the province of "*amicus curiae*" is never to accept the conclusion, recommendation and position taken by a body, person or group of persons in a matter under consideration. Quite to the contrary, the job of *amicus curiae* (a Latin word meaning friend of the court) is to "*provide the court with a candid independent and legally sound position on a matter before the court, of which the court desires that an independent*

scrutiny be undertaken and an unbiased and candid view, supported by the law, be placed before the court." See: *In Re: Judicial Inquiry Commission (JIC) Report: Complaint of Atty. Morris K. Kaba against His Honour Associate Magistrate T. Richard Browne, Second Judicial Circuit Court, Grand Bassa County, Supreme Court Opinion, October Term, 2015; In re: Judicial Inquiry Commission (JIC) Report: Complaint of Traditional Women of Konobo Statutory District against His Honour Stipendiary Magistrate Chelleh B. Mitchell, 7th Judicial Circuit Court, Grand Gedeh County, Supreme Court Opinion, October Term, 2015.*

The Supreme Court herewith expresses its deep gratitude to these friends of the Court for the insight and greater light they most diligently shed on the matter before tis Court. Their contributions have aided the Court in no small measure to reach a conclusion which we have determined to be fair, just and equitable in the premises.

In their brief filed with this Court on September 3, A.D. 2016, the amici curiae identified one issue as dispositive of the controversy at bar. They coined the issue as whether or not Atty. Morris Kaba committed unprofessional or unethical act or conduct. In discussing this lone issue raised, the amici curiae proceeded as quoted:

"From the facts of the case, it is revealed that after the trial, with the exception of filing and obtaining the approval of the Bill of exceptions, Atty. Kaba totally failed to complete the appeal process, thereby adversely affecting his clients. His representation of his clients did not terminate at the conclusion of the trial and we note that he was aware of this, as he filed and obtained the approval of the trial judge to the Bill of Exceptions..."

Further considering the matter and highlighting the requirements for the exercise of the constitutional right of appeal, the Friends of the Court emphasized thus:

"a primary duty of a lawyer is to represent his client competently; that a lawyer may not neglect a legal matter entrusted to him; that Atty. Kaba was indeed inattentive to his client's affairs. Once Atty. Kaba had entered into a contract with the Complainants to represent them, the amici curiae emphasized, he was obligated to carry out that contract. He abandoned the complainants' appeal without making proper arrangement for completion of the appeal.

Therefore, from the facts of the case, the testimonies of the witnesses, as culled from the Report of the Grievance and Ethics Committee, it is apparent that indeed Atty. Kaba did commit unprofessional and unethical act and conduct."

This Court has carefully reviewed the Grievance and Ethics Committee's Report and has also diligently considered the brief filed by the amici curiae. Clearly, the *amici curiae* fully agree with the conclusion reached by the Grievance and Ethics Committee that Attorney Morris A. Kaba's conduct, as detailed herein, was unprofessional and unethical; that Attorney Morris A. Kaba failed to zealously protect his client as directed by Rule 5 of the Code of Moral and Professional Ethics. Rule 5 of the Code of Moral and Professional Ethics provides:

"A lawyer assigned as counsel for an indigent person, or a prisoner, ought not to ask to be excused for ant trivial reason; nor should money unduly influence his decision to represent or determine the quality of his representation. He should always exert his very best professional effort on behalf of his client". Emphasis supplied.

We take due note also that the *amici curiae* seem to slightly differ in respect of the twelve (12) month period of suspension recommended by the Grievance and Ethics Committee for the breach. The slight difference in opinion is highlighted in the amici curiae's brief, and eloquently articulated during arguments before the Supreme Court, in the manner following:

"We observed that during the trial and up to the filing of the Bill of Exceptions, Atty. Kaba exerted his very best professional effort and competently represented the complainants. He was present in court for the entire duration of the trial. The complainants themselves admitted and acknowledged his adequate representation up to the end of the trial. Further, the records do not contain any evil or fraudulent intent on the part of Atty. Kaba. Though he failed to produce oral or written evidence to substantiate his claim that he travelled to Rivercess County to seek medical attention and entrusted the completion of the complainants appeal to another attorney, the change in his behavior, must have been caused by certain circumstances. Therefore, we believe that these should be mitigating factors in determining the discipline to be imposed upon Atty. Kaba."

In further consideration of the general attending circumstances, and because of Atty. Kaba's diligence during the trial of the case, lack of evil or fraudulent intent, the amici curiae was of the considered view that the twelve (12) month suspension period recommended by the Grievance and Ethics Committee be *"reduced, and as modified, be confirmed."*

This Court desires to make a number of observations as it concludes this matter:

Firstly, the general principle which should at all times govern investigation by either the Judicial Inquiry Commission (JIC) or the Grievance and Ethics Committee is truth seeking and to dig out as much as possible to reaching the truth in every investigation. To achieve the objective of truth seeking, fact finding and discovery, the technical rules of procedure and the strict rules of evidence, which could frustrate the work of these two Supreme Court bodies, do not apply. The Supreme Court of Liberia has repeatedly stated that to safeguard the image of the legal profession and to jealously preserve the integrity of the Judiciary, formal and conventional legal requirements for filing and commencing investigation into a complaint of ethical breach, need not be followed. Those technical rules are subordinated to the preservation and protection of the sanctity of the legal profession. This Court, far back in 1873, some one hundred and forty three years ago, stated:

"...the gentlemen of the Bar constitute, in a sense, a distinct corps, possessing certain privileges, and as such they have a right to motion the Court to suspend any Counselor, whenever they consider it necessary to the honor of the Court....."

See: *Motion to disbar a Counsellor*", 1 LLR 506-7 (1873). It is interesting to observe that the referenced case involves even a graver matter of disbarment, not a suspension. Yet, the Supreme Court, presided over by His Honor, Mr. Chief Justice C. L. Simpson, expressed the view that a simple motion filed before it by some members of the Bar seeking a serious action as the disbarment of a member of the Supreme Court Bar from the practice of law, was sufficient to have the Supreme Court seized of the matter.

The Supreme Court suspended *"from his privileges as a member of the bar of the Supreme Court..."* Our Emphasis.

Sixty four years after the case referenced in which Counsellor Henry Washington Johnson, Sr. was disbarred, the question was squarely raised as to the necessity to have a formal complaint lodged against a member of the legal profession as a requirement precedent to calling the lawyer to answer to allegation of professional misconduct. Mr. Justice William V. S. Tubman addressing this query on behalf of this Court said:

"Such a position [that a formal complaint be tendered as a necessity to investigating professional misconduct] is entirely without the reason of law...and it has been held that where the reason of the law ceases, the law itself ceases, and whatever appears to be within the reason of the law should be considered within the law itself."

Reiterating its inherent powers to regulate the conduct of lawyers and all legal practitioners, including judicial officers, this Court held:

"There are cases in which a Bar Committee may sua sponte take notice of the professional misconduct of a lawyer and cite him to appear and answer for notorious acts, even if no complaint be otherwise made within reasonable season..." [Emphasis supplied]. See the case: *W. B. Gray, Secretary of the Local Bar Committee for the Fifth Judicial Circuit, Grand Cape Mount County, Petitioner and Relator, v. A. Dondo Ware, a practicing Attorney-at-law and member of the Circuit Court Bar of the Fifth Judicial Circuit, Grand Cape Mount County, Respondent*, 6 LLR 61, 67-8 (1937). Also See: Jurisdiction, under the procedure governing the operation of the National Bar Association of the Republic of Liberia in matters of unprofessional and unethical conduct of lawyers.

It seems clear from this review that in order to facilitate summary investigation of ethical transgression alleged to have been committed by legal practitioners, both the Grievance and Ethics Committee and the Judicial Inquiry Commission need not necessarily be governed by the technical rules.

This is an established principle of law in this jurisdiction which cannot be a subject of rational argument.

Against this backdrop, this Court takes due note of the grave allegation made by Attorney Morris Kaba that he was not the only lawyer retained by the complainants in this case. This allegation is captured in Attorney Kaba's returns as follows:

"...it is essential to further mention that before departure from the City of Buchanan, Respondent contacted one of the Lawyers, in person of Atty. Bobby Livingstone in the presence of an uncle of one of the complainants, Aloysius Kieh, simply known to Respondent as Patrick to file the Notice of Completion of Appeal so as to finalize the announcement for an appeal."

This Court further observes that in his response to the complaint, Attorney Kaba did mention the names of other lawyers. He alleged that they were all retained to represent the interest of the Complainants, specifically naming those as Arthur Johnson, Bobby Livingstone and Patrick K. Williams. As to how it proceeded with its investigation, the Grievance and Ethics Committee stated as follows:

"The Committee, in its fact-finding objective, asked questions to all of the witnesses. Atty. Kaba did not request for the presence of the other lawyers in the matter, to confirm his allegation that he informed them [that is, Arthur Johnson, Bobby Livingstone] that he was sick and had to go to Rivercess County to seek medical attention and that they will be responsible to work along with Cllr. Tuan to complete the Appeal process."

The Committee contacted Cllr. Tuan and he responded to the effect that he was indeed contacted to represent the Complainants on appeal but he had no records and was only placed in contact with Atty. Kaba outside of the statutory time for the completion of the Appeal in the Criminal Trial. The testimonies rested and the Committee went into deliberation."

The allegation made against some members of the bar by Attorney Kaba that those lawyers were also hired by the complainants was serious and grave, in the opinion of this Court, to have prompted the Grievance and Ethics Committee to call those legal practitioners for summary investigation. For if this allegation were investigated and found to be true, it goes without saying that said lawyers would be equally answerable to the Grievance and Ethics Committee in respect of legal representation. That Attorney Kaba did not himself "*request for the presence of the other lawyers in the matter*" so that the Committee could ascertain what role, if any, those lawyers might have played, is not sufficient justification for the Committee's apparent reluctance to have done so.

In this case of such colossal failure of professional responsibility, the Committee should have proceeded in faithfulness to "*its fact-finding objective*" to have cited all those lawyers for an investigation. This Court believes that such should have been the proper course to be pursued. Most importantly, the Grievance and Ethics Committee would seem to have considered this course. For if the position taken by the Grievance and Ethics Committee for not citing Attorney Bobby Livingstone and Counsellor Arthur Johnson was based on "*Atty. Kaba did not request for the presence of the other lawyers in the matter, to confirm his allegation that he informed them*", this Court may be tempted to ask why did the Committee contact Counsellor Nyanti Tuan, whose presence was also not requested by Attorney Kaba, to ascertain his role in the matter. Yet the Grievance and Ethics Committee correctly and properly contacted Counsellor Nyanti Tuan, who, upon being contacted, "*responded to the Committee's inquiry confirming that he was indeed contacted to represent the Complainants on appeal but he could not do so because 'he had no records and was only placed in contact with Atty. Kaba outside of the statutory time for the completion of the Appeal in the Criminal Trial.'*"

If this commendable course of finding the truth was further pursued by the Grievance and Ethics Committee, the Committee would have ascertained whether a lawyer actually must necessarily wait to receive a file from a colleague lawyer in order to complete an appeal process. Finding answer to this question was important because all the records needed to complete the appeal process in this case at bar were readily available and obtainable at the trial court. This Court does not accept that the presence of Attorney Kaba, as it would seem to be implied, was necessary to obtaining the trial records for the purpose of completing the appeal process. The Grievance and Ethics Committee should have rigorously pursued these queries to their logical conclusions. Elucidating on the province of the Grievance and Ethics Committee in 'In Re: Grievance and Ethics Committee Investigative Report on Complaint by Reverend Eric M. Allison against Counsellor Marcus Jones', this is what His Honour Francis S. Korkpor, Sr., speaking for a unanimous Court, stated:

"The Grievance and Ethics Committee is one of two important organs of the Judiciary that deals with allegations of unethical and unprofessional conducts of members of the legal profession in our country. The other organ is the Judicial Inquiry Commission which sits and hears cases of unethical and unprofessional conducts against judges. The Committee has jurisdiction to inquire into and consider any complaint made against any lawyer involving his character, integrity, professional standing or conduct as a member of the bar.

It is within the competence of the Committee to employ the means of fact finding, conciliation, mediation, arbitration or adjudication in relation to any written complaint made against a lawyer, and the Committee shall not be bound by the strict rules of evidence...."

We reaffirm this holding.

This Court hereby endorses the findings made by the Grievance and Ethics Committee and the recommendation set forth therein. The facts as narrated and the laws applicable thereto clearly make a compelling case against the respondent, Attorney Morris Kaba, for disciplinary action, he having contravened Rule 5 of the Code of Moral and Professional Ethics. In consideration of the mitigating circumstances, and as pointed out by the amici curiae of the display of diligence and commitment shown by Attorney Morris A. Kaba during the criminal trial and except for his lapse after the conclusion of the trial, we hereby affirm the Grievances and Ethics Committees recommendation of suspension but with the modification that same be reduced to three (3) months to take effect as of the date of rendition of this Opinion, same being today, Friday, September 23, A.D. 2016.

We also hereby direct that the Grievance and Ethics Committee conducts further investigations in the complaint and allegation made by citing Attorney Bobby Livingstone, Counsellors Arthur Johnson, Patrick K. Williams and Nyanti Tuan to ascertain the role/s each played in executing professional responsibility to the complainants in this matter and submit its findings and recommendation to this Court.

Finally, it is appropriate to emphasize that this Court is the ultimate guardian and protector of transparent justice in the Republic. In this light, we have duly considered the extraordinary and special extenuating circumstances which occurred in the criminal case from which a complaint was filed against Attorney Morris A. Kaba. In consideration of these special circumstances especially the fact that the complainants were tried and convicted of a capital offense that carries the death penalty or life imprisonment, it is our further order that the complainants/defendants in the criminal case be allowed to file their notice of completion of appeal *nunc pro tunc* so that the appeal is perfected and this Court has the opportunity to hear the appeal.

The Clerk of this Court is hereby ordered to send a mandate to all courts of the Republic of Liberia, the respondent lawyer, the Liberian National Bar Association and all relevant parties and authorities within the bailiwick of the Republic of Liberia to ensure strict compliance with this Judgment. **AND IT IS SO ORDERED.**